

Law for Horticulturists

Science

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Law for Horticulturists (A08361)

Short Title: Law for Horticulturists
Faculty Science and Computing
Department Science
Cluster Business
Author DGKEATING
Credits 5

Level: Intermediate

Description of Module / Aims

The aims of this module is to give students a knowledge of the laws which frequently impact upon the work of the Horticulturist, to give the Horticulturist an appreciation of the potential legal liabilities which he/she may encounter in the workplace, and the relevant rules and regulations which must be complied with in order to limit their exposure to such liabilities.

Programmes

HORT-0017	BSc in Horticulture (WD_SHORT_D)	3 / 6 / M
HORT-0017	BSc in Horticulture (WD_SHORT_DX)	3 / 6 / M

Indicative Content

- Sources of law - Common Law, Legislation, Judicial Precedent and EU law
- The Structure of the Courts - the Structure and Jurisdiction of the Criminal and Civil Courts including the Jurisdiction of the Small Claims Court process
- Tortious Liability - Negligence, Nuisance, Rylands and Fletcher, Trespass to Land, Occupiers' Liability
- Contract Law - the Formation of the Contract including the tendering process, the Discharge of the Contract and Remedies for Breach of the Contract
- Real and Personal Property Rights, Acquisition and Ownership of Property including Intellectual Property Rights, Property and Boundary Disputes, Easements and Profits a Prendre
- Planning and Environmental Law - Planning Rules and Procedures, Authorised, Unauthorised and Exempted Developments, Environment Regulations impacting on Horticulturalists
- Plants, Hedges and Trees -- the law related to the development, cultivation, growth, sale, import and export of plants, hedges and trees

Learning Outcomes

On successful completion of this module, a student will be able to:

1. Debate the impact of current and future Irish and EU sources of law on the day-to-day operation and regulation of the horticulture industry.
2. Show how the court process, including the small claims court procedure, operates in this Jurisdiction.
3. Analyse the various tortious liabilities which the horticulturist may be exposed to in the workplace.
4. Illustrate how contractual agreements are formed and/or terminated and how contractual breaches can be remedied.
5. Explore the law in relation to the development, cultivation, growth, sale, import and export of plants, hedges and trees.
6. Investigate the various ways in which property rights can be acquired and owned and how property disputes can be resolved or avoided.
7. Determine the impact which Planning and Environmental Law has on the provision of horticultural services.

Learning and Teaching Methods

- Lectures
- Seminars
- Self directed learning

Assessment Methods

	Weighing	Outcomes Assessed
Continuous Assessment	100%	
<i>Assignment</i>	20%	1,2
<i>Case Studies</i>	30%	6,7
<i>In-Class Assessment</i>	50%	3,4,5

Assessment Criteria

<40%: Very limited knowledge and understanding of the subject matter. Lacking in technical ability/skill and understanding to carry out practical/professional tasks. Failure to meet the objectives of projects. Unable to carry out or submit independent study and research.

40%-49%: Demonstrates a limited knowledge of the subject matter.

50%-59%: Demonstrates satisfactory general knowledge of the main issues within the subject.

Satisfactory handling and awareness in carrying out independent study and research.

60%-69%: Demonstrates sound knowledge of the subject matter. Shows ability to analyse and logically argue in an effective and mature style. Demonstrates initiative and the ability to criticise material.

70%-100%: Demonstrates authoritative handling of complex material and a highly developed and extensive understanding of the subject. Provides well focused analysis and convincing argument on the subject.

Learning Modes

Learning Mode	F/T Hours	P/T Hours
Lecture	36	
Tutorial	12	
Independent Learning	87	

Essential Material

- Keenan, A. *_Essentials of Irish Business Law_*. 6th ed. Dublin: Gill & MacMilan, 2012.
- Kelly, T. *_Neighbours and the Law_*. 1st ed. Dublin : Clarus Press, 2012.

Supplementary Material

- Corbett, V. *_Tort_*. 2nd ed. Dublin : Roundhall, 2009.
- Grist, B. *_An Introduction of Irish Planning Law_*. 2nd ed. Dublin : Institute of Public Administration, 2012.
- Pearce, R.A and J Mee. *_Land Law_*. 3rd ed. Dublin : Roundhall, 2011.